

PUBLIC VERSION

Exhibit 90C

REDACTED

LICENSE AGREEMENT

THIS LICENSE AGREEMENT is made as of the 1st day of October, 1991 between L&P Property Management Company, an Illinois corporation (the "Licensor") and the undersigned corporation (the "Licensee").

Recitals

Licensor owns all of the patents, copyrights, trademarks, trade names, service marks, logos, corporate names, inventions, trade secrets, technology, know-how, processes, systems, procedures and all registered, unregistered and common law rights and other similar items of intangible intellectual property formerly owned by Leggett & Platt, Incorporated and its affiliates (the "L&P Companies"), including all divisions, reissues, continuations, substitutions, renewals or extensions thereof, together with all goodwill associated with such items, and the L&P Companies' full rights to sue for and recover all profits and damages recoverable from past infringements thereof (the "Intellectual Property"). Licensee desires to use the Intellectual Property in its business, and Licensor is willing to grant Licensee a non-exclusive license to use the Intellectual Property in connection with Licensee's business on the following terms and conditions.

Agreement

NOW, THEREFORE, in consideration of the foregoing and the mutual covenants contained herein, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. TERM OF AGREEMENT

The initial term of this Agreement shall begin on the date first set forth above (the "Effective Date") and, unless sooner terminated as provided herein, shall expire on September 30, 1992. Thereafter, this Agreement shall automatically renew, for an unlimited number of renewal terms of one (1) year each, unless and until Licensor or Licensee shall give the other written notice, at least sixty (60) days before the expiration of the then current term, of such party's intention to terminate this Agreement at the end of the then current term.

2. GRANT OF LICENSE

2.1 Grant of License. Subject to the terms and conditions set forth herein, Licensor hereby grants Licensee the non-exclusive right and license to use the Intellectual Property

in connection with Licensee's business, subject, however, to any and all license and royalty agreements currently in effect which L&P or its subsidiaries shall have heretofore granted to third parties ("Existing Licenses"). Licensee shall have the right to sublicense, assign or transfer the rights granted herein, but only with the consent of Licensor, which consent shall not be unreasonably withheld. Licensee shall have the right to amend, extend, renegotiate and otherwise deal with any Existing License, subject to Section 2.3 of this Agreement with the consent of Licensor, which consent shall not be unreasonably withheld. The license granted herein shall terminate upon the expiration or termination of this Agreement.

2.2 Intellectual Property Developed or Acquired Subsequent to the Effective Date. If, subsequent to the Effective Date, new items of Intellectual Property are created or acquired by Licensor, whether by acquisition from licensees or third parties, internal development, granting of applications now pending or subsequently filed, or otherwise, such new items of Intellectual Property shall be added to the Intellectual Property licensed hereunder immediately upon the creation or acquisition thereof by Licensor, and such new items of Intellectual Property shall thereafter be governed by and licensed in accordance with this Agreement, provided, however, that the parties may agree not to so add any or all such new items of Intellectual Property.

2.3 Quality Control. Licensee shall use the Intellectual Property only in connection with products which meet the standards of quality and specifications established from time to time by Licensor. Licensor shall be the sole judge of whether Licensee has met its established standards and specifications. Licensor acknowledges that the products now manufactured by Licensee utilizing the Intellectual Property as it currently exists, conform to Licensor's required quality standards. Licensee shall submit to Licensor upon Licensor's request shop drawings, advertising literature, manuals and instructions and other information relating to the products utilizing the Intellectual Property. Failure of Licensee to conform to Licensor's quality standards for the products shall be a cause for termination of this Agreement.

2.4 Licensor's Right to Approve Promotional Materials. Upon written request from Licensor, Licensee shall provide reasonable samples of advertising and promotional materials used or intended for use by Licensee which incorporate the Intellectual Property so that Licensor may monitor Licensee's use of the Intellectual Property. Licensor reserves the right to disapprove such advertising and promotional materials if Licensor

reasonably determines that the Intellectual Property is improperly used therein.

2.5 Registered Uses; Patent and Trademark Protection. Licensee shall, at its cost, file as a registered user with respect to any patent rights and trademarks included in the Intellectual Property if such registration is considered necessary or desirable by either Licensor or Licensee. The parties shall cooperate with each other in order to effect any such registration. Licensee shall mark each of its products covered by such patent rights with "Patent Pending", "Patent No." or similar appropriate designations identifying such patents or patent applications of Licensor to the extent required by applicable law or considered considerable by Licensor. Licensee agrees to use its reasonable best efforts to mark all advertising, promotional and other appropriate materials incorporating any of the trademarks included in the Intellectual Property with the symbol SM (or the symbol ® if the Mark is registered with the United States Patent and Trademark Office in connection with such trademarks.

3. ROYALTIES

3.1 Calculation of Royalties; Adjustments to Royalty Rates. Attached as Schedule A hereto is a listing of (i) product lines which utilize various items of the Intellectual Property ("Product Lines") and (ii) the royalty rates applicable to each respective Product Line. As consideration for the license granted herein, Licensee agrees to pay Licensor, in the manner and at the times described in Section 3.2, a royalty equal to the

each renewal term, Licensor may have the Intellectual Property revalued by an independent valuation expert, and a new royalty rate based on such valuation shall be established for the next succeeding renewal term.

3.2 Payments. Licensee shall pay the royalties due Licensor hereunder quarterly in advance on or before the last day of each calendar quarter during the term hereof (and renewal term), except that the royalty payment for the first quarter of the term hereof (October 1 through December 31, 1991) shall be made on October 1, 1991. Each quarterly payment shall be based on Licensee's Trade Sales of products, by Product Line, made during the calendar quarter next preceding the calendar quarter in which payment is due. For example, the quarterly payment due

on or before December 31 shall be based on [REDACTED] of products, by Product Line, made during the calendar quarter July 1 through September 30 of such year. Notwithstanding the termination or expiration of this Agreement, royalties shall continue to accrue during the period permitted in Section 5.3 below and shall be due and payable no later than thirty (30) days following the end of such period.

3.3 Reports and Records; Inspection. Licensee agrees that each payment hereunder shall be accompanied by a written report describing the calculation of such payment. Further, Licensee agrees to maintain complete and accurate records and books of account sufficient to substantiate the calculation of payments made hereunder. Upon reasonable notice to Licensee, Licensor or its designee may from time to time inspect such books and records to verify the accuracy of payments made hereunder and inspect the Licensee's facilities and operations to verify Licensee's compliance with the quality standards required hereunder.

4. OWNERSHIP; INFRINGEMENT; INDEMNIFICATION; NONDISCLOSURE

4.1 Ownership. Licensor represents and warrants that it owns all right, title and interest in and to the Intellectual Property and that it has the right to grant the license conveyed herein, subject to Existing Licenses. Licensee acknowledges Licensor's exclusive right, title and interest in and to the Intellectual Property subject to Existing Licenses. Further, Licensee agrees and its use of the Intellectual Property shall inure to Licensor's benefit. Licensee shall not commit, or cause any third party to commit, any act challenging, contesting or in any way impairing or attempting to impair Licensor's right, title and interest in and to the Intellectual Property.

4.2 Infringement. If Licensee learns of any activity by a third party which might constitute an infringement of Licensor's ownership rights in any of the Intellectual Property, or if any third party asserts that Licensee's use of any of the Intellectual Property constitutes unauthorized use or infringement, Licensee shall so notify Licensor. If Licensor prosecutes any alleged infringement of the Intellectual Property, or defends Licensee's right to use any of the Intellectual Property, Licensee shall make all reasonable efforts to assist Licensor therewith, including providing such evidence and expert assistance as Licensee may have within its control.

4.3 Indemnification. Licensor assumes no liability and makes no warranties to Licensee or to third parties with respect to the Intellectual Property. Licensee, to the fullest

extent permitted by law, shall defend, indemnify and hold Licensor harmless from and against all claims, losses, damages and expenses (including reasonable attorney's fees) arising out or relating to the manufacture, sale or use of products incorporated the Intellectual Property.

4.4 Nondisclosure. Licensee understands that the Intellectual Property made available by Licensor hereunder contains information (such as trade secrets) of Licensor that are confidential in nature. Licensee agrees not to disclose or make public without the prior written consent of Licensor such information which is not generally published or lawfully available to third parties, and Licensee further agrees to take all measures reasonably necessary to prevent any acquisition, disposition or use of such information by any person, firm or corporation not expressly authorized to receive such information under this Agreement. Nothing herein shall prevent the disclosure by Licensee to its suppliers of specifications and technical information necessary to permit the suppliers to make parts and subassemblies to be used by Licensee in the manufacture or repair of the Products, and to customers to the extent necessary for sales and fulfillments of orders.

5. DEFAULT; REMEDIES; TERMINATION

5.1 Events of Default. Any of the following shall constitute an Event of Default by Licensee:

(a) Licensee defaulting in the performance of any covenant, agreement, term or provision under this Agreement, and such default continuing for a period of thirty (30) days after notice thereof by Licensor to Licensee;

(b) Licensee filing a voluntary petition for bankruptcy, reorganization or an arrangement under any bankruptcy or insolvency law, or an involuntary petition under any such law being filed against Licensee and not dismissed within ninety (90) days; or

(c) Licensee making an assignment for the benefit of its creditors.

5.2 Remedies. Upon the occurrence of an Event of Default by Licensee, Licensor may, at its option, terminate this Agreement upon thirty (30) days written notice to Licensee.

5.3 Obligations Upon Termination. Upon termination of this Agreement, Licensee shall have the right to sell all products then in Licensee's inventory, provided that a royalty

shall be owing in respect of all such sales in accordance with the provisions of Section 3.1 above. Except as provided in the next preceding sentence, Licensee shall, as of the date of termination of this Agreement, discontinue all use of the Intellectual Property.

6. NOTICES

All notices, claims, requests, demands and other communications hereunder shall be in writing and shall be deemed to have been given or made when hand delivered or 5 days after mailing by first class mail, to a party at its address as it appears in this Agreement or to such other address as either party may subsequently designate in writing and deliver as provided in this Section 6.

7. GENERAL PROVISIONS

7.1 Governing Law. This Agreement shall be governed and construed in accordance with the laws of the State of Illinois.

7.2 No Assignment. Neither party may assign this Agreement without the written consent of the other, which shall not be unreasonably withheld.

7.3 No Waiver. The failure of either party to insist upon strict performance of any of the terms or provisions of this Agreement, or the exercise of any option, right or remedy contained herein, shall not be construed as a waiver of any future application of such term, provision, option, right or remedy, and such term, provision, option, right or remedy shall continue and remain in full force and effect.

7.4 Entire Agreement. The terms and provisions of this Agreement constitute the entire agreement between the parties with respect to the matters described herein and supersede all previous communications, negotiations, proposals, representations, conditions or agreements, whether written or oral, relating thereto. This Agreement may not be modified or amended except in a writing signed by a duly authorized officer or representative of each party.

PUBLIC VERSION

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized officers as of the date first written above.

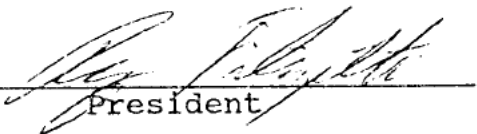
Licensors:

L&P PROPERTY MANAGEMENT COMPANY
5950 West 51st Street
Chicago, Illinois 60638

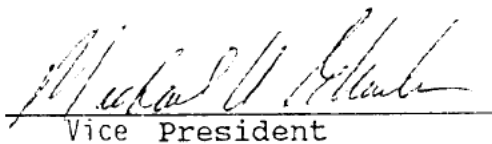
Licensee:

LEGGETT & PLATT, INCORPORATED

By


President

By


Vice President

